

- RAG Learning

2.2 Congress

Politics — AQA (7152) — Paper 2 (Government and Politics of the USA and Comparative Politics)

Congress is bicameral: the **House of Representatives** (435 voting members) and the **Senate** (100). Unlike the UK Parliament it is genuinely independent of the executive — it writes its own bills, sets its own agenda and routinely rejects presidential proposals. The examinable question is whether that independence now produces effective legislating or mostly obstruction.

1. Composition and terms

	House of Representatives	Senate
Size	435 voting members	100 (two per state)
Term	2 years — the entire House is re-elected each cycle	6 years, staggered so one-third is elected every two years
Constituency	A congressional district, apportioned by population	An entire state, regardless of population
Minimum age	25	30
Presiding officer	Speaker — a partisan leader, not neutral	Vice President (casting vote only); President pro tempore

Exam Tip: The **Speaker of the House is a partisan figure** who leads the majority party and controls the floor agenda — the opposite of the scrupulously impartial UK Speaker. Getting this wrong is a common error in comparative questions.

2. Exclusive powers

House only	Senate only
Initiating revenue (money) bills	Confirming presidential appointments — cabinet secretaries, ambassadors, federal judges including Supreme Court justices (simple majority)
Bringing impeachment charges (simple majority)	Ratifying treaties (two-thirds majority)
Electing the President if no Electoral College majority	Trying impeachments; conviction requires two-thirds

3. Functions

- **Legislation** — both chambers must pass an identical text.
- **Representation** — of a district (House) or state (Senate), plus extensive constituency casework.
- **Oversight** — committee hearings, investigations, subpoenas.
- **Power of the purse** — all federal spending requires appropriation.
- **Confirmation and ratification** (Senate).
- **Impeachment** and proposing constitutional amendments.

4. The legislative process

1. **Introduction** — only a member may introduce a bill, though the executive often drafts it.
2. **Committee stage** — the crucial stage. Standing committees hold hearings, amend, and can **kill a bill simply by not reporting it**. Most bills die here.
3. **Floor action** — in the House, the Rules Committee sets debate terms tightly; in the Senate, debate is open, which makes the filibuster possible.
4. **Conference committee** — reconciles differing House and Senate versions into one text.

5. **Presidential action** — sign, veto (overridable by two-thirds of both chambers), or take no action. If Congress adjourns within ten days and the President has not signed, the bill dies by **pocket veto**.

5. Committees

- **Standing committees** — permanent, with jurisdiction over a policy area. Conduct detailed scrutiny with professional staff resources UK committees cannot match. Chairs are powerful gatekeepers.
- **Select committees** — temporary, usually investigative (e.g. the January 6th committee).
- **Conference committees** — reconcile the two chambers' versions.
- **Senate Judiciary Committee** — conducts Supreme Court confirmation hearings.

6. The filibuster

Filibuster — use of the Senate's tradition of unlimited debate to delay or block a vote. Ending it requires a **cloture** motion, normally needing **60 of 100** senators.

Because 60 votes are rarely available, the filibuster functions as a **de facto supermajority requirement** for most legislation. It has been abolished for nominations — lower federal courts in 2013, Supreme Court nominees in 2017 — but retained for legislation. Governments therefore route what they can through **budget reconciliation**, which permits budget-related measures by simple majority but sharply restricts what can be included.

Defend the filibuster	Abolish the filibuster
Forces consensus and protects minority interests in a chamber designed for deliberation	An extra-constitutional veto — it appears nowhere in the Constitution
Prevents rapid reversal of policy with each change of majority	41 senators representing a small share of the population can block majority-supported legislation

Encourages cross-party bargaining

In a polarised era it produces paralysis rather than compromise, since bipartisan majorities no longer exist

7. Incumbency and representation

Why incumbents almost always win

- **Name recognition**, franked mail, staff resources and a record of constituency casework and federal funding secured.
- **Fundraising** — donors prefer likely winners and want continued access, so challengers are typically heavily outspent.
- **Safe districts** — drawn deliberately through gerrymandering, or produced by voters sorting geographically.

House re-election rates routinely exceed 90 per cent. Senate incumbents are less secure, since statewide electorates cannot be gerrymandered.

Exam Tip: The consequence of safe districts is the crucial analytical link in this topic. Where the general election is a formality, the **only real threat is a primary challenge from the ideological flank**. Members are therefore rewarded for purity and punished for compromise — which is the principal institutional driver of polarisation, and connects this topic to 2.5 and 2.6.

Distortions in representation

- **Senate malapportionment** — Wyoming and California have equal representation despite vastly different populations, so a minority of the national population can command a Senate majority.
- **Partisan gerrymandering** — House seat shares can diverge sharply from statewide vote shares. *Rucho v Common Cause* (2019) held such claims non-justiciable in federal courts, leaving remedy to state constitutions and ballot initiatives.

8. Oversight of the executive

- **Committee investigations** — compelled testimony, subpoenas, public hearings. Watergate and the January 6th committee are the landmark examples.
- **The power of the purse** — refusing funds, attaching conditions, or declining to fund government at all (a **shutdown**). The most concrete lever, since it needs no executive cooperation.
- **Confirmation hearings** — scrutiny of nominees and of the policies they will implement.
- **Impeachment** — the ultimate sanction. Andrew Johnson (1868), Clinton (1998) and Trump (2019, 2021) were impeached by the House; none was convicted by the Senate, which requires two-thirds.

Exam Tip: The decisive point about oversight: its vigour tracks **partisan advantage, not constitutional duty**. Under divided government committees investigate aggressively; under unified government the same powers go largely unused, because members have no incentive to damage their own administration. Effective oversight is therefore a function of election results rather than of institutional design.

9. Is Congress an effective legislature?

Effective	Ineffective
Genuinely independent of the executive — writes its own bills and sets its own agenda	Polarisation and the filibuster mean major legislation frequently fails, even under unified government
Powerful committees with professional staff produce thorough scrutiny	Committee chairs can bury widely supported measures; leadership-negotiated omnibus bills receive minimal scrutiny
Strong local representation; weak discipline allows members to vote on constituency grounds	Poor at pursuing diffuse national interests — members are rewarded for local benefits and punished for local costs

Refusal to act is itself an exercise of power

Has delegated extensive authority to the executive over tariffs, emergencies and regulation, allowing members to avoid responsibility

Key terms

Term	Definition
Bicameral	A legislature of two chambers
Filibuster	Extended Senate debate used to delay or block a vote
Cloture	Motion ending a filibuster; normally requires 60 votes
Reconciliation	Procedure allowing budget-related measures to pass the Senate by simple majority
Pocket veto	A bill dying because the President takes no action and Congress adjourns within ten days
Gerrymandering	Drawing district boundaries to advantage a party or group
Malapportionment	Unequal representation relative to population — two senators per state regardless of size
Divided government	The presidency and at least one chamber controlled by different parties
Oversight	Congressional scrutiny of the executive branch
Pork barrel	Federal spending directed to a member's district to secure local support

Essential examples

- **Affordable Care Act 2010** — passed the Senate with exactly 60 votes to overcome a filibuster under unified government; amendments were then passed through reconciliation. The repeal attempt failed in the Senate in 2017.
- **Filibuster reform** — abolished for lower-court nominations (2013) and Supreme Court nominations (2017).
- **Merrick Garland 2016 / Amy Coney Barrett 2020** — the Senate's confirmation power exercised on nakedly partisan grounds.
- **Government shutdowns** — the power of the purse used as leverage.
- **Trump impeachments (2019, 2021)** — House impeachment without Senate conviction; the two-thirds threshold in practice.
- ***Rucho v Common Cause* (2019)** — partisan gerrymandering held non-justiciable federally.